

VCU331283 Dowling, Nicole vs. Leyva, Marycruz

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-08-25

Motion: Demurrer

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Re: Dowling, Nicole vs. Leyva, Marycruz

Case No.: VCU331283

Date: August 25, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Demurrer

Tentative Ruling: To sustain the demurrer with leave to amend; Plaintiff shall have ten (10) days from the date of this hearing to file an amended complaint.

Facts

The Court, on May 12, 2026, sustained a demurrer with leave to amend as to conversion and continuing conversion, and without leave to amend as injunctive relief.

On May 22, 2026, Plaintiff filed a first amended complaint and a second amended complaint.

The operative second amended complaint alleges causes of action for conversion and continuing conversion stating:

"7. At all times prior to November 14, 2025, Plaintiff was the sole owner and lawful possessor of the personal property described herein, including but not limited to: personal identification and documents, work-related materials, clothing, electronics, personal effects, and items necessary for daily living and employment ("Personal Property").

8. Plaintiff lawfully stored her Personal Property within the residential premises located at 2421 Capitol Court, in Tulare County, California ("the Premises"), where Plaintiff resided immediately prior to her forcible removal.

9. On or about November 14, 2025, Defendant, acting individually and through agents, caused Plaintiff to be forcibly removed from the Premises pursuant to a writ of possession arising from disputed unlawful detainer proceedings, while knowingly allowing Plaintiff's Personal Property to remain inside the residence.

10. Following the lockout and forcible removal, Defendant knowingly retained possession and control over Plaintiff's Personal Property.

11. Defendant exercised dominion and control over Plaintiff's Personal Property by excluding Plaintiff from access, retaining possession, and refusing to allow retrieval, beyond any limited custodial authority associated with temporary post-writ possession.

12. On November 14, 2025, immediately after being forced to leave the Premises, Plaintiff contacted Defendant and expressly warned Defendant not to dispose of, damage, conceal, or interfere with Plaintiff's Personal Property, and demanded its preservation and prompt return.

13. Defendant acknowledged possession of Plaintiff's Personal Property and represented that she would later "send an email" to arrange a date to allow Plaintiff to retrieve her belongings.

14. No such arrangements were subsequently provided.

15. Despite repeated demands, Defendant failed to return Plaintiff's Personal Property and instead retained exclusive control over it.

16. Defendant's conversion has been ongoing and continuous from November 14, 2025, through the present, as Defendant continues to withhold Plaintiff's Personal Property without legal justification.

17. Each day of continued retention constitutes a separate and continuing harm, increasing Plaintiff's economic loss and loss-of-use damages.

18. On or about December 21, 2025, Plaintiff again contacted Defendant and demanded the return of confiscated identity documents. During this communication, Plaintiff also inquired about the status of her remaining Personal Property.

19. Defendant falsely claimed not to know what Personal Property Plaintiff was referring to, despite Defendant's prior acknowledgments that Plaintiff's belongings remained inside the Premises.

20. Defendant then stated that she was "preparing" to move Plaintiff's property into storage, without Plaintiff's consent, authorization, or agreement, further interfering with Plaintiff's ability to recover possession.

21. On or about January 9, 2026, Plaintiff again contacted Defendant and demanded the return of her Personal Property.

22. Defendant then admitted that she had already "packed all your stuff and put it in a storage room," and further asked Plaintiff, "if you found a place? I might be able to move your stuff to an apartment."

23. Plaintiff expressly informed Defendant that Defendant never obtained consent to make any unilateral decision regarding Plaintiff's property, reminded Defendant that she is not the lawful owner of the property, and objected to Defendant's continued interference.

24. Plaintiff further informed Defendant that Defendant's suggestion of making a "second decision" regarding Plaintiff's property constituted additional and ongoing conversion.

25. Defendant has never provided proof of storage, an inventory, access to the property, or any meaningful opportunity for Plaintiff to retrieve her belongings.

26. As of the filing of this Complaint, Defendant continues to intentionally withhold Plaintiff's Personal Property.

...

28. Following execution of the writ of possession, Defendant became subject to the statutory procedures governing the storage, notice, safekeeping, and recovery of personal property remaining on the Premises, including Code of Civil Procedure section 1174(g) and related statutory obligations concerning post-tenancy personal property.

29. Despite those obligations, Defendant failed to provide Plaintiff with compliant written notice identifying the location of storage, the manner by which the property could be reclaimed, or any meaningful inventory or condition disclosure concerning Plaintiff's Personal Property.

30. Defendant further failed to provide Plaintiff with any meaningful or reasonably accessible retrieval procedure despite repeated demands for return of the property, and instead retained discretionary control over the location, movement, access, and release of Plaintiff's Personal Property through informal and shifting communications outside the statutory framework." (SAC ¶¶7-26, 28-30.)

On July 23, 2026, Defendant demurred to the complaint arguing there are duplicative complaints filed and that the causes of action are uncertain and fail to state facts sufficient to state a cause of action.

On August 14, 2026, Plaintiff filed a late opposition that argues the causes of action have been sufficiently pled.

Authority and Analysis

The purpose of a demurrer is to test whether a complaint "states facts sufficient to constitute a cause of action upon which relief may be based." (Young v. Gannon (2002) 97 Cal.App.4th 209, 220. To state a cause of action, a plaintiff must allege facts to support his or her claims, and it is improper and insufficient for a plaintiff to simply plead general conclusions. (Careau v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 11371, 1390.) The complaint must contain facts sufficient to establish every element of that cause of action, and thus a court should sustain the demurrer if "the defendants negate any essential element of a particular cause of action." (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879-80)

To determine whether the complaint states facts sufficient to constitute a cause of action, the trial court may consider all material facts pleaded in the complaint and those that arise by reasonable implication therefrom; it may not consider contentions, deductions, or conclusion of fact or law (Moore v. Conliffe (1994) 7 Cal.4th 634, 638.)

It is well-settled that all well-pled material facts in the complaint are assumed to be true for the purpose of the demurer. (C & H Foods v. Hartford Ins. Co. (1984) 163 Cal.App.3d 1055, 1062) But "doubt in the complaint may be resolved against plaintiff and facts not alleged are presumed not to exist. (Id.)

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) No other extrinsic evidence can be considered (i.e., no "speaking demurrers"). (Ion Equip. Corp. v. Nelson (1980) 110 Cal.App.3d 868, 881.)

Conversion Following Writ of Possession

The elements of a conversion claim are: (i) Plaintiff's ownership or right to possession of the property; (ii) Defendant's conversion by a wrongful act or disposition of property rights; and (iii) Damages. (Burlesci v. Petersen (1998) 68 Cal.App.4th 1062, 1066).

A writ of possession issued by a court as to an unlawful detainer matter typically states:

"WRIT OF POSSESSION OF REAL PROPERTY....Except for a mobile home, personal property remaining on the premises will be sold or otherwise disposed of in accordance with Code of Civil Procedure section 1174 unless you or the owner of the property pays the judgment creditor the reasonable cost of storage and takes possession of the personal property not later than 15 days after the time the judgment creditor takes possession of the premises."

Therefore, under the facts pled, the Court cannot find a sufficient allegation as to "wrongful act or disposition of property rights" via storage of personal property pursuant to a writ of possession following an unlawful detainer matter and Code of Civil Procedure section 1174(g). The conclusory allegation that the writ was issued "wrongfully" is insufficient and Plaintiff has not otherwise demonstrated conduct beyond what is permitted pursuant to the writ's plain language noted above. Neither has Plaintiff properly challenged the underlying basis for the issuance of the writ of possession.

Further, section 1174(g) states no requirement as to where the storage must occur, only that it is "in a place of safekeeping."

Plaintiff alleges:

"29...Defendant failed to provide Plaintiff with compliant written notice identifying the location of storage, the manner by which the property could be reclaimed, or any meaningful inventory or condition disclosure concerning Plaintiff's Personal Property.

30. Defendant further failed to provide Plaintiff with any meaningful or reasonably accessible retrieval procedure despite repeated demands for return of the property, and instead retained discretionary control over the location, movement, access, and release of Plaintiff's Personal Property through informal and shifting communications outside the statutory framework." (SAC ¶¶29, 30.)

However, subsection (h) requires:

"The landlord shall release the personal property pursuant to Section 1965 of the Civil Code or shall release it to the tenant or, at the landlord's option, to a person reasonably believed by the landlord to be its owner if the tenant or other person pays the costs of storage as provided in Section 1990 of the Civil Code and claims the property not later than the date specified in the writ of possession before which the tenant must make his or her claim or the date specified in the notice before which a person other than the tenant must make his or her claim." (emphasis added)

Here, there is no allegation that Plaintiff, an apparent former tenant, has paid the costs of storage and/or claimed the property not later than the date provided in the writ of possession, which appears to be 15 days from the date of the writ.

Therefore, the Court sustains the demurrer to the complaint.

A demurrer cannot be sustained without leave to amend where it appears that the facts alleged establish a cause of action under any possible legal theory or it is reasonably possible that the plaintiff can amend the complaint to allege any cause of action. (Canton Poultry & Deli, Inc v. Stockwell, Harris, Widom, and Woolverton (2003) 109 Cal.App.4th 1219, 1226.)

Plaintiff shall have ten (10) days from the date of this hearing to file an amended complaint.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.